

Tentative Rulings for August 20, 2026
Department 501

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

23CECG00336 *Swan v. Stoll et al.* (Dept. 501)—See Tentative Ruling below addressing the motion for summary judgment, or in the alternative, adjudication.

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

22CECG03945 *Eduardo Velazquez v. Carlucci Transport Inc.* is continued to Thursday, September 17, 2026, at 3:30 p.m. in Department 501.

25CECG00846 *Hernandez v. State Center Community College District et al.* is continued to Tuesday, September 1, 2026, at 3:30 p.m. in Department 501.

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Tentative Rulings for Department 501

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(20)

Tentative Ruling

Re: ***In Re: Imidacloprid Cases***
Superior Court Case No. 22JCCP05241

Hearing Date: August 20, 2026 (Dept. 501)

Motion: By Nutrien Ag. Solutions, Inc. and Loveland Products, Inc., to
Stay Proceedings Pending Appeal

Tentative Ruling:

To grant and stay all proceedings, including discovery, in these coordinated cases pending resolution of Nutrien Ag Solutions, Inc. and Loveland Products, Inc. (collectively, "Nutrien Defendants") appeal of the December 15, 2025 judgment. Trial currently set for October 26, 2026, is off calendar, and will be reset after the appeal is resolved.

Explanation:

Following trial of the *M.C. Watte Ranches v. Nutrien Ag Solutions* matter (the "M.C. Watte matter"), on December 15, 2025 the court entered judgment against Nutrien Defendants. Nutrien Defendants filed a notice of appeal of the judgment on February 13, 2026. All remaining matters in the coordinated proceedings that have not been dismissed, settled, or tried in the October 27, 2025 trial are set to be tried on October 26, 2026. Nutrien Defendants move to stay the upcoming trial pending resolution of the appeal. They rely on the automatic stay provision of Code of Civil Procedure section 916, subdivision (a), or alternatively seek a discretionary stay.

"[T]he perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matters embraced in the action and not affected by the judgment or order." (Code Civ. Proc., § 916, subd. (a).) As a result, "under section 916, the trial court is divested of subject matter jurisdiction over any matter embraced in or affected by the appeal during the pendency of that appeal." (*Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal. 4th 180, 197.)

The court disagrees with Nutrien Defendants' contention that the court is divested of jurisdiction from continuing with the coordinated proceedings pending the appeal. Though coordinated, the various proceedings are distinct lawsuits with differing parties. The *M.C. Watte* matter was severed from those matters set to go to trial in October of 2026. A final judgment was reached only in that matter and Nutrien Defendants' appeal applies only to that judgment. (Code Civ. Proc., § 9044.1, subd. (a)(1).) The only parties to the pending appeal are Nutrien Defendants, M.C. Watte, and Brian Watte Farms. Any decisions in upcoming trial will not affect this judgment, and will not "enforce, vacate, or modify the appealed judgment." (See *Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 189.)

However, the court finds that a discretionary stay is warranted. Trial courts are authorized to enter a discretionary stay of proceedings during the pendency of an appeal. (*Daly v. San Bernardino County Bd. of Supervisors* (2021) 11 Cal.5th 1030, 1039.) “[T]he power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants. (*Landis v. N. Am. Co.* (1936) 299 U.S. 248, 255.) The court “must weigh competing interests and maintain an even balance.” (*Id.*)

There are two primary issues raised in the appeal that have bearing on the remaining actions to be tried. First is Nutrien Defendants’ argument that the grower plaintiffs’ damages are purely economic losses, unrecoverable in tort. This argument is based on the fact that Imidacloprid was deliberately added to the pistachio trees at issue to protect them from insects, and that there was no allegation that the chemical went anywhere other than where it was supposed to go. Nutrien Defendants therefore argued that the mere presence of chemical residue in quantities above what is desirable when the pistachios are harvested does not transform into a physical injury. This same argument is raised by Nutrien Defendants as well as by other defendants with respect to the claims brought by Horizon Nut and each of the growers. While this court held that the economic loss rule did not preclude tort claims in this case, a contrary ruling by the Court of Appeals would have a significant impact on the cases yet-to-be-tried. The oppositions do not dispute this conclusion.

The second issue is the this Court’s determination that the Horizon Parties had no obligation to pay M.C. Watte Ranches (“M.C. Watte”) or Brian Watte, dba Brian Watte Farms, (“BWF”) as the growers had breached the relevant agreements. The court’s determination that the Horizon Parties did not owe anything for the pistachios they determined to have residue levels over the MRL (the maximum residue level set by the EPA) is a key issue in Nutrien Defendants’ pending appeal. It could also be dispositive of certain claims set for trial in October. The Court’s conclusion as a matter of law that Horizon Nut and Horizon Growers did not breach their contractual obligations to M.C. Watte or BWF is an interlocutory ruling merged into the final judgment being appealed. (*Dail v. Campbell* (1961) 191 Cal.App.2d 416, 420.) That determination by this court, now on appeal, affects Nutrien Defendants’ remaining equitable indemnity claim against Horizon Nut and Joel Perkins for tortious interference with contract.

While the court is confident in its conclusions and rulings on the above issues, these are nonetheless difficult legal issues. A stay would serve the interests of justice by avoiding the burden of a lengthy and expensive trial that might ultimately be unnecessary, or narrowed significantly in scope, depending on how the Court of Appeal resolves the matter.

The court does not find the oppositions’ claims of prejudice to be persuasive. The oppositions claim that a stay will increase litigation costs and increase the danger

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: KCK on 08/17/26
(Judge's initials) (Date)

(34)

Tentative Ruling

Re: **Ortiz v. Cervantes, et al.**
Superior Court Case No. 24CECG02055

Hearing Date: August 20, 2026 (Dept. 501)

Motion: Motion for Order to Show Cause re Contempt

Tentative Ruling:

To deny, without prejudice.

Explanation:

Plaintiff moves for the issuance of an order to show cause why defendant Fernando Lugo Cervantes should not be held in contempt for failure to comply with the court's January 21, 2026 order that he serve further responses to specified requests for production of documents and special interrogatories.

When contempt is not committed in the immediate view and presence of the court, the facts constituting the contempt shall be presented to the court in an affidavit. (Code Civ. Proc., § 1211, subd. (a).) After notice to the opposing party, the court (if satisfied with the sufficiency of the affidavit) must sign an order to show cause re contempt in which the date and time for a hearing are set forth. (Code Civ. Proc., § 1212; *Arthur v. Superior Court* (1965) 62 Cal.2d 404, 408 ["an order to show cause must be issued"].)

Indirect contempt (based on conduct outside the presence of the court) requires a showing of the following elements: (1) issuance of a valid order; (2) knowledge of the order; (3) ability to comply with the order; and (4) willful disobedience of the order. (*Conn. v. Superior Court* (196 Cal.App.3d 774, 784.)

A contempt proceeding is commenced by the filing of an affidavit showing the facts constituting contempt. (Code Civ. Proc., § 1211, subd. (a).) The affidavit frames the issues to be tried. (*Reliable Enterprises, Inc. v. Superior Court* (1984) 158 Cal.App.3d 604, 616, disapproved on other grounds by *Mitchell v. Superior Court* (1989) 49 Cal.3d 1230, 1248, fn. 13.) The filing of a sufficient affidavit is a "jurisdictional prerequisite" to a contempt proceeding and without one, any contempt order is void. (*In re Koehler* (2010) 181 Cal.App.4th 1153, 1169.) The court may permit amendment of the affidavit for any insufficiency at any stage of the proceedings. (Code Civ. Proc., § 1211.5, subd. (b).)

Here, the papers and declaration filed by plaintiff show that the court granted plaintiff's motion to compel defendant Cervantes' further responses to request for production, set one, nos. 4-8, 10-12, 15, and 17-23 and special interrogatories, set one, nos. 1-3 and 7, ordered further responses to be served within 30 days, and no further responses were served as ordered. (Bolce Decl., ¶¶ 2, 4, Ex. A.) The declaration additionally includes that the court served notice of its order on all parties by mail. (*Id.*, ¶

However, the court is not inclined to utilize contempt proceedings for garden-variety discovery violations. "The sanctions the court may impose are such as are suitable and necessary to enable the party seeking discovery to obtain the objects of the discovery he seeks but the court may not impose sanctions which are designed not to accomplish the objects of the discovery but to impose punishment. [Citations.]" (*Caryl Richards, Inc. v. Superior Court* (1961) 188 Cal.App.2d 300, 304.) Further, in the context of the imposition of jail time for failure to provide discovery responses as ordered, "[l]esser sanctions, such as the striking of pleadings, imposition of monetary fines, even dismissal of causes of action or defenses, are more plentiful in the precedent" and such Draconian sanctions should be reserved for only the most flagrant abuses. (*In re de la Parra* (1986) 184 Cal.App.3d 139, 144.)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: KCK on 08/17/26
(Judge's initials) (Date)

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(37)

Tentative Ruling

Re: **Angel Andrade**
Court Case No. 26CU00748

Hearing Date: August 20, 2026 (Dept. 501)

Motion: Petition to Compromise Minor's Claim

Tentative Ruling:

To deny, without prejudice. Petitioner must file an amended petition, with appropriate supporting papers and proposed orders, and obtain a new hearing date for consideration of the amended petition. (Super. Ct. Fresno County, Local Rules, rule 2.8.4.)

Explanation:

Petitioner has not included all relevant medical records for the injuries sustained by the minor. Medical Reports from Fresno Imaging Center and Nicole Carter, LMFT were the only ones attached. Thus, with the exception of mental health issues, there is no record showing the injuries resolved.

The medical billing is not fully substantiated. First, without the medical records, the court cannot assess if the complete medical billing is included with this Petition. Second, petitioner seeks reimbursement of \$2,000 for AWS Health, \$800 for Dr. Robert E. Caton, and \$600 for Beverly Radiology. Neither medical records regarding treatment nor billing records were included for these providers. There is also no explanation for why these are not included with the Medi-Cal lien.

The Petition requests costs in the amount of \$621.94. The court does not intend to approve charges against the minor's recovery that are unreasonable. (Prob. Code, § 3601.) The court is particularly concerned with the 1) Demand Draft Fee for \$187.50 and 2) File Preservation for \$300. The court is not inclined to include these costs. The Demand Draft Fee appears to be for work that would ordinarily be performed by counsel and thus be included in attorney's fees. The court is unaware of any authority for a file preservation fee.

Pursuant to California Rules of Court, Rule 3.1312 and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/18/26 .
(Judge's initials) (Date)

(36)

Tentative Ruling

Re: **Nino v. General Motors, LLC**
Superior Court Case No. 25CECG02336

Hearing Date: August 20, 2026 (Dept. 501)

Motion: by Plaintiff for Attorney Fees and Costs

Tentative Ruling:

To grant the motion for an award of attorney fees and award \$22,962.50 in fees in favor of plaintiff David Nino. To award costs in the amount of \$1,703.12.

Explanation:

Plaintiff moves for an award of attorney fees and costs as the prevailing buyer under Civil Code section 1794, subdivision (d). Plaintiff submits an executed settlement agreement authorizing plaintiff to seek fees and costs from defendant. (Chavez Decl., Ex. A.) In opposition, defendant does not contest the basis of plaintiff's seeking of an award of fees. The court finds that plaintiff sufficiently states a basis upon which to seek an award of fees and costs.

Fees

The amount of attorney's fees awarded is a matter within the court's discretion. (*Clayton Development Co. v. Falvey* (1988) 206 Cal.App.3d 438, 447.) In determining the reasonable amount to award, "the court should consider ... 'the nature of the litigation, its difficulty, the amount involved, the skill required and the skill employed in handling the litigation, the attention given, the success of the attorney's efforts, his learning, his age, and his experience in the particular type of work demanded [citation]; the intricacies and importance of the litigation, the labor and necessity for skilled legal training and ability in trying the cause, and the time consumed.'" (*Ibid.*) An award of costs must be "reasonably necessary to the conduct of the litigation" and per (c)(3), shall be "reasonable" in amount. (Code Civ. Proc. § 1033.5(c)(2).) Plaintiff as the moving party bears the burden to prove the reasonableness of the number of hours devoted to this action. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1325.)

A trial court may not rubberstamp a request for attorney fees, and must determine the number of hours reasonably expended. (*Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 271.) A court assessing attorney's fees begins with a touchstone or lodestar figure, based on the "careful compilation of the time spent and reasonable hourly compensation of each attorney . . . involved in the presentation of the case." (*Serrano v. Priest (Serrano III)* (1977) 20 Cal.3d 25, 48.) Lodestar refers to the "number of hours reasonably expended multiplied by the reasonable hourly rate" of an attorney. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1096.)

Counsel for plaintiff seeks to set the lodestar at \$21,860, excluding an additional \$3,150 sought in connection with anticipated time for preparing the motion at bench. Counsel submits a total of 56.6 hours of billed time across two timekeepers. Counsel predominately practices in consumer protection claims, such as the present action. (Miser Decl., ¶ 16.) As to the attorneys, counsel submits hourly rates of \$475 for John Miser, and \$350 for Raquel Chavez. Defendant challenges the reasonableness of each attorney's respective rates. The court finds the rates to be negligibly high for the Fresno area and reduces the rates to \$450 for Mr. Miser and \$325 for Ms. Chavez.

Following a careful review of the entries submitted, the court finds that a few entries that are disproportionately billed. (E.g., Chavez Decl. Ex. B, pp. 1-3 [8.3 hours researching Civil Code sections 1782, 1793.2 and Code of Civil Procedure sections 871.20-871.28]; Chavez Decl. Ex. B, p. 2 [1.5 hours to prepare deposition notice].) Additionally, as defendants suggest in opposition, the amount of time spent on communicating with the client appears high. The court does not credit Mr. Miser with 2.5 hours and Ms. Chavez with 8 hours. As to plaintiff's request for \$3,150 for anticipated fees in connection with the motion at bench. While plaintiff did submit a reply brief, plaintiff did not state how many hours were spent on the reply. Since plaintiff failed to provide evidence of fees actually incurred for reviewing the opposition and preparing the reply, the time allowed is limited to the five hours² counsel indicates was incurred in connection with preparing the moving papers. Therefore, the lodestar is set at \$18,370.

Plaintiff seeks the imposition of a multiplier of 1.3. As stated by the California Supreme Court regarding lodestar multipliers, sometimes referred to as fee enhancements:

...the trial court is *not required* to include a fee enhancement to the basic lodestar figure for contingent risk, exceptional skill, or other factors, although it retains discretion to do so in the appropriate case; moreover, the party seeking a fee enhancement bears the burden of proof. In each case, the trial court should consider whether, and to what extent, the attorney and client have been able to mitigate the risk of nonpayment, e.g., because the client has agreed to pay some portion of the lodestar amount regardless of outcome. It should also consider the degree to which the relevant market compensates for contingency risk, extraordinary skill, or other factors under *Serrano III*. We emphasize that when determining the appropriate enhancement, a trial court should not consider these factors to the extent they are already encompassed within the lodestar. The factor of extraordinary skill, in particular, appears susceptible to improper double counting; for the most part, the difficulty of a legal question and the quality of representation are already encompassed in the lodestar. A more difficult legal question typically requires more attorney hours, and a more skillful and experienced attorney will command a higher hourly rate. (See *Margolin v. Regional Planning Com.* (1982) 134 Cal.App.3d 999, 1004, 185 Cal.Rptr.

² The court further notes that Ms. Chavez billed one hour for the preparation of the instant fees motion on her billing record. This appears to be duplicative of counsel's claimed five hours in the memorandum of points and authorities in support of the moving papers; therefore, the one hour is discounted from Ms. Chavez's total time.

145.) Indeed, the “ ‘reasonable hourly rate [used to calculate the lodestar] is the product of a multiplicity of factors ... the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney's reputation, and the undesirability of the case.’ ” (*Ibid.*) Thus, a trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable. Nor should a fee enhancement be imposed for the purpose of punishing the losing party. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138-1139 [emphasis original].)

Once a lodestar is fixed, the lodestar may be adjusted based on certain factors, including: (1) the novelty and difficulty of the questions involved; (2) the skill displayed in presenting them; (3) the extent to which the nature of the litigation precluded other employment by the attorneys; and (4) the contingent nature of the fee award. (*Id.* at p. 1132, citing *Serrano v. Priest (Serrano III)* (1977) 20 Cal.3d 25, 49.)

Here, plaintiff submits that counsel took the matter on contingency, and obtained an exceptional result. Plaintiff further suggests that there was undue delay in settling this matter. The court acknowledges the contingent risk taken by counsel, but finds the outcome to be ordinary to the statutory relief afforded in these actions. Though plaintiff suggests undue delay, the timeline supports a finding that all parties treated the matter as proceeding to trial. The steady nature of the discovery conducted suggests as much. This would not constitute a delay, much less undue delay. Moreover, this matter settled less than one year following the commencement of the action and plaintiff's counsel does not suggest that the delay precluded other employment. Nonetheless, the court applies a multiplier of 1.25. The motion for an award of attorney fees is granted in the amount of \$22,962.50.

Costs

Costs are sought via declaration in the amount of \$2,158.12. (Chavez Decl., Ex. C.) Defendants argue that some of the costs sought are disallowed.

If the items on a verified statement appear to be proper charges, the statement is prima facie evidence of their propriety and the burden is on the party contesting them to show that they were not reasonable or necessary. (See *Hooked Media Group, Inc. v. Apple Inc.* (2020) 55 Cal.App.5th 323, 338.) The losing party does not meet this burden by arguing that the costs were not necessary or reasonable but must present evidence to prove that the costs are not recoverable. (*Litt v. Eisenhower Med. Ctr.* (2015) 237 Cal.App.4th 1217, 1224.) If the claimed items are not expressly allowed by statute and are objected to, the burden of proof is on the party claiming them as costs to show that the charges were reasonable and necessary. (*Foothill-De Anza Community College Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 29.)

Here, plaintiff submits, among other costs, costs for filing fees, service, mediation, and deposition. Defendant challenges the entirety of the costs on the ground that a

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: KCK on 08/18/26
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: **Alexandra Seifert v. Paul Michaelides**
Superior Court Case No. 25CECG03846

Hearing Date: August 20, 2026 (Dept. 501)

Motion: Defendant Paul Leon Michaelides' Motion to Compel Further Discovery and Sanctions

Tentative Ruling:

To grant defendant Paul Leon Michaelides' motion to compel further responses from plaintiff Alexandra Seifert to Special Interrogatories, Set One, Form Interrogatories, Set One, and Request for Production of Documents, Set One. Plaintiff shall provide further verified responses, without objection, to defendant within 30 days of service of the order by the clerk.

To impose monetary sanctions in the total amount of \$3,340 against plaintiff Alexandra Seifert, in favor of defendant Paul Leon Michaelides to be paid within thirty (30) days of service of the order by the clerk.

Explanation:

Defendant, Paul Leon Michaelides ("Michaelides") files these motions to compel further responses from plaintiff Alexandra Seifert. ("Seifert" or "plaintiff.") Michaelides seeks to compel further responses to Special Interrogatories, Set One, Form Interrogatories, Set One, and to Requests for Production, Set One.

Seifert initially filed her complaint against Michaelides and Paul L. Michaelides, D.D.S., M.Sc.D., Inc. ("DDS") (collectively "defendants") arising from a visit to Dr. Michaelides' dental office on August 15, 2022 when COVID-19 restrictions were in place including a mask mandate for healthcare settings, where Seifert eventually left the premises, and not necessarily through her own volition. ("Incident.")

Standard to Compel Further Responses to Interrogatories and Requests for Production

A party may move for an order compelling further responses to interrogatories on the grounds that: (1) an answer to a particular interrogatory is evasive or incomplete; (2) an exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate; or (3) an objection to an interrogatory is without merit or too general. (Code Civ. Proc., § 2030.300, subd. (a).)

The Code of Civil Procedure instructs the responding party that: "(a) Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits. (b) If an interrogatory cannot be answered completely, it shall be answered to the extent possible. (c) If the

responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party." (Code Civ. Proc., § 2030.220)

"Parties must state the truth, the whole truth, and nothing but the truth in answering written interrogatories." (*Scheiding v. Dinwiddie Const. Co.* (1999) 69 Cal.App.4th 64, 76; see Code Civ. Proc., § 2023.010, subd. (f) [making evasive response to discovery is misuse of discovery process].) Where the question is specific and explicit, it is improper to provide only a portion of the information sought or "deftly worded conclusionary answers designed to evade a series of explicit questions." (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783.) "If a person cannot furnish details, he should set forth the efforts made to secure the information. He cannot plead ignorance to information which can be obtained from sources under his control." (*Id.* at p. 782.)

If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure fully to answer the interrogatories. (*Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-221; *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.)

With respect to the production of documents, a party may move for an order compelling further responses to requests for the production of documents on the grounds that: (1) a statement of compliance with the request is incomplete; (2) a representation of inability to comply is inadequate, incomplete, or evasive; or (3) an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).) The burden is on the moving party to "set forth specific facts showing good cause justifying the discovery sought by the demand." (Code Civ. Proc., § 2031.310, subd. (b)(1).)

The Discovery Requests and Responses

On December 10, 2025, Michaelides served form and special interrogatories, and demands for production of documents, set one, on Seifert. (Gibson Decl., ¶14.) Seifert served responses on January 13, 2026, which contained no substantive responses and only objections. Seifert electronically provided further responses on March 4, 2026 and on March 5, 2026, which merely asserted additional objections.

Michaelides filed these three motions on April 20, 2026.

Seifert's Limited Opposition Is Unfounded

Seifert argues that the motions are untimely because the "responses" (actually objections) were merely "amended" responses and not "supplemental responses." This perceived distinction makes no difference.

It is irrelevant how Seifert chose to label her responses. The Court evaluates parties' filings on their substance, not on the labels the parties choose to attach to them nor the statutory provisions they elect to cite. (Civ. Code, § 3528 ["The law respects form less than substance"]; *Sole Energy Co. v. Petrominerals Corp.* (2005) 128 Cal.App.4th 187, 193

[motions]; *O&C Creditors Group, LLC v. Stephens & Stephens XII, LLC* (2019) 42 Cal.App.5th 546, 560 [same]; *Saunders v. Cariss* (1990) 224 Cal.App.3d 905, 908 [allegations in pleadings]; *Maplebear, Inc. v. Busick* (2018) 26 Cal.App.5th 394, 400 [orders]; *Taska v. RealReal, Inc.* (2022) 85 Cal.App.5th 1, 11 [arbitrators' decisions].)

Seifert argues, without legal support, that “[s]upplemental responses arise only after the propounding party serves a supplemental demand seeking later-acquired or later-discovered information. A responding party has no obligation to provide supplemental information absent such a demand. In contrast, amended responses are made voluntarily by the responding party, without any demand.” (Seifert’s Opposition, pg. 5:6-9, italics and underlined not added.)

The statutory scheme for interrogatories are separated into three articles: Article 1 with respect to “Propounding Interrogatories” which encompasses Code of Civil Procedure section 2030.010 through 2030.090; Article 2 with respect to “Response to Interrogatories” which encompasses Code of Civil Procedure section 2030.210 through 2030.310; and Article 3 with respect to “Use of Interrogatory Answer” which references Code of Civil Procedure section 2030.410.

Here, the relevant statutes are found in Article 2, which pertains to Seifert’s response to interrogatories. The Code of Civil Procedure does not define either “amended” or “supplemental.” “‘As in any case involving statutory interpretation, our fundamental task here is to determine the Legislature’s intent so as to effectuate the law’s purpose.’ [Citation.] The well-established rules for performing this task require us to begin by examining the statutory language, giving it a plain and commonsense meaning. [Citation.] We do not, however, consider the statutory language in isolation; rather, we look to the statute’s entire substance in order to determine its scope and purposes. [Citation.] That is, we construe the words in question in context, keeping in mind the statute’s nature and obvious purposes. [Citation.] We must harmonize the statute’s various parts by considering it in the context of the statutory framework as a whole. [Citation.] If the statutory language is unambiguous, then its plain meaning controls. If, however, the language supports more than one reasonable construction, then we may look to extrinsic aids, including the ostensible objects to be achieved and the legislative history.” (*Los Angeles County Metropolitan Transportation Authority v. Alameda Produce Market, LLC* (2011) 52 Cal.4th 1100, 1106–1107.)

Seifert argues that her subsequent responses are “amended answers” per Code of Civil Procedure section 2030.310, subdivision (a). Code of Civil Procedure section 2030.310, subdivision (a) provides that “[w]ithout leave of court, a party may serve an amended answer to any interrogatory that contains information subsequently discovered, inadvertently omitted, or mistakenly stated in the initial interrogatory”. Here, an amended answer requires “information subsequently discovered, inadvertently omitted, or mistakenly stated.”

Unlike Code of Civil Procedure section 2030.310, subdivision (a) which describes what an “amended answer” is and the circumstances where they are proper, Code of Civil Procedure section 2030.300, subdivision (c) authorizes a motion to compel further responses after a “supplemental response,” but does not define what a “supplemental” response is. Code of Civil Procedure section 2030.300, subdivision (c), provides “[u]nless

notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response to the interrogatories."

"Supplemental" means "supplying something additional; adding what is lacking." ("Supplemental," Black's Law Dictionary (12th ed. 2024). This is consistent with the everyday use of supplemental, where "supplement" means "something that completes or makes an addition." (*Supplement*, Merriam-Webster Online Dictionary, <https://www.merriam-webster.com/Dictionary/supplement> (August 15, 2026).) It should be noted that neither Black's Law dictionary definition nor Merriam-Webster's dictionary bare any resemblance to Seifert's own definition of "supplemental," as stated above.

Here, Seifert's subsequent responses with respect to the form and special interrogatories were "supplemental responses" as opposed to "amended answers." In truth, they were non-answers as Seifert only supplied objections. Seifert's subsequent answers do not contain any "information subsequently discovered, inadvertently omitted, or mistakenly stated." Seifert merely added additional objections.

Motions to Compel Further were Timely

A notice of motion to compel further responses must be given within 45 days of the service of the verified responses, or any supplemental verified responses, or on or before any specific later date to which the parties have agreed in writing. (Code Civ. Proc., §§ 2030.300, subd. (c); 2031.310, subd. (c).)

Here, Seifert electronically provided further responses to Michaelides' Form Interrogatories, Special Interrogatories, and Requests for Production on March 4, 2026 and on March 5, 2026. 45 days from March 4, 2026 fell on April 18, 2026, which was a Saturday. Code of Civil Procedure section 12a, subdivision (a) states that "[i]f the last day for the performance of any act provided or required by law to be performed within a specified period of time is a holiday, then that period is hereby extended to and including the next day that is not a holiday." Accordingly, the last day for Michaelides to serve Seifert would be the next Court date, which would be April 20, 2026, extended by two days pursuant to Code of Civil Procedure section 1010.6 (a)(3)(B),

Accordingly, Michaelides' motion is timely.

Seifert Failed to Justify Her Objections to Defendant's Discovery

A motion to compel further production must set forth specific facts showing good cause justifying the discovery sought by the inspection demand. (Code Civ. Proc., §2031.310(b)(1).) In *Digital Music News LLC v Superior Court* (2014) 226 Cal.App.4th 216 at 224, the Court defined "good cause" as a showing that there "a disputed fact that is of consequence in the action and the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact." If the moving party has shown good cause for the requests for production, the burden is on the objecting party to justify the objections. (*Kirkland v. Sup.Ct* (2002) 95 Cal. App.4th 92, 98.)

With respect to interrogatories, “[w]hile the party propounding interrogatories may have the burden of filing a motion to compel if it finds the answers it receives are unsatisfactory, the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 541.)

Here, Michaelides has met his initial burden showing good cause for the discovery sought, and how the answers it has received from Seifert are unsatisfactory. Seifert's opposition only addressed the issue of whether she served supplemental or amended responses (Seifert's Opposition, pp. 3:18-9:19), which this Court has already addressed above. Seifert has failed to meet her burden in justifying her objections. Accordingly, Michaelides' motions to compel further are granted.

Sanctions

Michaelides seeks a total of \$9,605 in sanctions against Seifert with respect to these motions. Seifert did not contest the imposition of monetary sanctions in her opposition papers.

The court must impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., §§ 2030.300, subd. (d), and 2031.310, subd. (h).)

The motions are essentially identical. The Court therefore grants sanctions in the amount of \$3,340.00 for all three motions as the Court finds the requested \$250 hourly rate reasonable, and agrees that Defendant is to be reimbursed for the three filing fees.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK **on** 08/19/26
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: ***In re Austin Keohavong***
Superior Court Case No. 26CU02226

Hearing Date: August 20, 2026 (Dept. 501)

Motion: Petition to Approve Compromise of Minor

Tentative Ruling:

To deny without prejudice. Petitioner Phoumano Keohavong must file a new petition, with appropriate supporting papers and proposed orders, and obtain a new hearing date for consideration of an amended petition. In the event that oral argument is requested, both petitioner Phoumano Keohavong and claimant Austin Keohavong are excused from appearing.

Explanation:

Item 12 reports medical expenses. Item 12(b)(4) reports a Medi-Cal benefit paid in the amount of \$40.91. However, evidence was submitted that Medi-Cal did not pay a benefit out on the incident in question. The only figure that aligns is a payment from Sante Health System, who is not listed as medical expense. Moreover, the petition reports that there are lien claims that total \$7,640, and that \$4,050 would be sufficient to satisfy those lien claims. No evidence was submitted to demonstrate, for example, that The Summit Physical Therapy will accept \$2,200 in lieu of its potential lien for \$4,900.

Item 13 reports costs of \$464.50. This conflicts with the declaration of counsel which reports that counsel is not seeking reimbursement of any costs advanced in this matter. (Attachment 13a, Hergenroether Decl., subpart (1).) The proposed order appears to seek recovery of costs. This requires clarification.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/19/26
(Judge's initials) (Date)

(37)

Tentative Ruling

Re: **Swan v. Stoll**
Superior Court Case No. 23CECG00336

Hearing Date: August 20, 2026 (Dept. 501)

Motion: By Defendants for Summary Judgment, or in the Alternative,
Adjudication

Tentative Ruling:

To deny defendants' motion for summary judgment. To deny defendants' motion for summary adjudication. (Code Civ. Proc., § 437c.)

Explanation:

A trial court shall grant summary judgment where there are no triable issues of material fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) In determining a motion for summary judgment, the court views the evidence "in the light most favorable to the plaintiff", liberally construing plaintiff's evidence and strictly scrutinizing the defendant's evidence. (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 254.) The court does not weigh evidence or inferences (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 856), nevertheless, the court shall consider all inferences reasonably deducible from the evidence unless it is controverted by other inferences or evidence. (Code Civ. Proc., § 437c, subd. (c).) Doubts as to whether there is a triable issue of fact are resolved in favor of the opposing party. (*Ingham v. Luxor Cab Co.*, *supra*, 93 Cal.App.4th 1045, 1049.)

Summary adjudication is the proper mechanism for challenging a particular, "cause of action, an affirmative defense, a claim for punitive damages, or an issue of duty." (*Paramount Petroleum Corp. v. Superior Court* (2014) 227 Cal.App.4th 226, 242.) However, "[a] motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc., § 437c, subd. (f)(1); see also *Catalano v. Superior Court* (2000) 82 Cal.App.4th 91, 97 [piecemeal adjudication prohibited].)

A summary judgment motion must show that the "material facts" are undisputed. (Code Civ. Proc., § 437c, subd. (b)(1).) The pleadings serve as the "outer measure of materiality" in a summary judgment motion, and the motion may not be granted or denied on issues not raised by the pleadings. (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258; *Nieto v. Blue Shield of Calif. Life & Health Ins. Co.* (2010) 181 Cal.App.4th 60, 74 [pleadings determine the scope of relevant issues on a summary judgment motion].)

Burden

The ultimate burden of persuasion rests on the defendant, as the moving party. The initial burden of production is on the defendant to show by a preponderance of the evidence, that it is more likely than not that a given element cannot be established or that a given defense can be established. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) The defendant must support the motion for summary adjudication with evidence, including, but not limited to, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice may be taken. (Code Civ. Proc., § 437c, subd. (b).) Defendants can meet this burden by producing affirmative evidence negating an essential element of a plaintiff's claim. (*Guz v. Bechtel Nat. Inc.* (2000) 24 Cal.4th 317, 324.) Defendants can also meet this burden by showing that a plaintiff does not have evidence and cannot reasonably obtain said evidence on an essential element of a plaintiff's claim. (*Aguilar, supra*, 25 Cal.4th at 855.)

If the defendant carries this initial burden of production, the burden of production shifts to the plaintiff to show that a triable issue of material fact exists. The plaintiff does this if she can show, by a preponderance of the evidence, that it is more likely than not that a given element can be established or that a given defense cannot be established. (*Aguilar, supra*, 25 Cal.4th at 852.)

Separate Statement

A party moving for summary judgment or summary adjudication must support the motion with a separate statement that sets forth plainly and concisely all material facts that the moving party contends are undisputed, and each of these material facts must be followed by a reference to the supporting evidence. (Code Civ. Proc., § 437c, subd. (b)(1), (f)(2).) A separate statement is required to afford due process to the opposing party and to permit the judge to expeditiously review the motion for summary judgment or summary adjudication to determine quickly and efficiently whether material facts are disputed. (*Parkview Villas Ass'n, Inc. v State Farm Fire & Cas. Co.* (2005) 133 Cal.App.4th 1197, 1210; *United Community Church v Garcin* (1991) 231 Cal.App.3d 327, 335.) As a result, the separate statement should include only *material* facts—ones that could make a difference to the disposition of the motion. (Cal. Rules of Court, rule 3.1350(f)(3); see also rule 3.1350(a)(2) [defining “material facts”].)

The moving party must go through its own case and the opposing party's case on an issue-by-issue basis. The moving party must identify for the court the matters it contends are “undisputed,” and cite the specific evidence (pleadings admissions, or discovery, or declarations) showing there is no controversy as to such matters and that the moving party is entitled to judgment as a matter of law. “This is the Golden Rule of Summary Adjudication: If it is not set forth in the separate statement, *it does not exist.*” (*United Community Church v. Garcin* (1991) 231 Cal.App.3d 327, 337 [superseded by statute on other grounds]; *Allen v. Smith* (2002) 94 Cal.App.4th 1270, 1282; *Teselle v. McLoughlin* (2009) 173 Cal.App.4th 156, 173 [failure of defendant's separate statement to address material allegation in complaint was “fatal flaw”].)

Here, defendants cite to the same 79 material facts for each issue to be adjudicated. For material fact numbers 1-20, 22-27, 29-79, these all merely describe what plaintiff has alleged, largely beginning with “According to Plaintiff...” Thus, the only

material facts which are not a summary of plaintiff's allegations are material fact numbers 21 and 28. Material fact number 21 states, "Defendants Stoll and Northwest did not breach any fiduciary duty recognized under law as being owed to Plaintiff." To support this assertion, defendants cite to the Second Amended Complaint paragraph 84. Material fact number 28 states, "Plaintiff's breach of oral contract claim accrued as of May 31, 2020." To support this assertion, defendants cite to the Second Amended Complaint paragraph 24.

Material fact numbers 1-28, 42-76 cite only to portions of the Second Amended Complaint as evidence to support these facts. Material fact numbers 39-40 and 77-79 cite to either page 25 or 75 of Plaintiff's Responses to Defendant Northwest Baptist Church's Form Interrogatories.

Material Fact Number 21

Material fact number 21 presents a legal conclusion that defendants did not breach any fiduciary duty to plaintiff. A *fiduciary* relationship between a pastor and a congregant may exist where claims involve marital, family, or financial counseling. (*Richelle L. v. Roman Catholic Archbishop* (2003) 106 Cal.App.4th 257, 270-280.) Defendants argue that no such relationship exists here. Defendants cite to paragraph 84 of the Second Amended Complaint to support this conclusion. This paragraph asserts defendants failure to investigate plaintiff's claims in January of 2021 and their use of her name as a donation category on the church's website. (SAC, ¶ 84.) It does not support a conclusion that defendants owed no fiduciary duty here. Furthermore, defendants have not provided sufficient support for such an assertion where plaintiff's allegations center on several meetings with defendants regarding a financial issue in which she claims defendants persuaded her to refrain from litigation while defendants attempted to mediate and/or resolve the financial issue. Defendants have not provided sufficient support to claim that these activities do not constitute financial counseling.

As already noted, each request for adjudication relies on the same 79 material facts in the separate statement. Material fact number 21 lacks support. As material fact number 21 is identified in defendants' separate statement as material to each issue to be adjudicated, none of the issues defendants' identified may be adjudicated.

Material Fact Number 28

Material fact number 28 asserts when the breach of oral contract accrued. Defendants argue that plaintiff's first cause of action for breach of oral contract fails because it is time barred by the statute of limitations. Actions based on an oral contract must be brought within two years of breach of the oral contract. (Code Civ. Proc., § 339 (1); *Spears v. Spears* (2023) 97 Cal.App.5th 1294, 1304.) Breach of a contract accrues upon the alleged breach. (*Spears v. Spears, supra*, 97 Cal.App.5th at p. 1304.)

Defendants claim that the alleged breach accrued on May 31, 2020. (Material Fact No. 28.) Defendants cite only to paragraph 24 of the Second Amended Complaint as evidence to support this finding. Such a reading requires ignoring paragraph 57 of the same Second Amended Complaint, which states, "Plaintiff did not discover Defendants'

breaches until after January 31, 2021.” Notably, defendants have relied almost exclusively on the Second Amended Complaint as their evidence.

Further, defendants have focused on payment of monies to plaintiff as the sole source of the breach. This fails to read the alleged oral contract in whole. Plaintiff has alleged that defendants agreed to three things: (1) ensuring she would receive full compensation for a March 2, 2018 claim, (2) that defendant church's lawyers would help plaintiff if action was needed, and (3) that defendant Stoll would be a personal witness for plaintiff, if necessary. (SAC, ¶ 51.) In exchange, plaintiff would (1) write a claim for the amount she needed to restore her retirement, (2) refrain from taking independent action to recover what was owed her from teacher retirement or her house sale, (3) stop attending the church's mentoring program sessions, (4) refrain from taking action to recover her restricted donations and other monies, and (5) confidentially meet with a named individual to help her. (SAC, ¶ 52.) Plaintiff has alleged her performance. (SAC, ¶ 53.) Plaintiff has alleged defendants' breaches, including failure to assist her with any litigation. (SAC, ¶ 54.) Defendants have not provided any argument, evidence, or material facts addressing the breaches alleged by plaintiff relating to the church's lawyers assisting her or defendant Stoll acting as a witness for plaintiff.

A defendant who seeks a summary judgment must define *all* of the theories of liability alleged in the complaint and challenge each factually; if the defendant fails to do so, he or she does not carry the initial burden of showing the nonexistence of a triable issue of material fact. (*Jameson v. Desta* (2013) 215 Cal.App.4th 1144, 1165; *Lopez v. Superior Court* (1996) 45 Cal.App.4th 705, 714.) Defendant did not address each legal theory of liability in this motion. If the moving party fails to meet its burden of production, the opposing party has no evidentiary burden to even oppose the motion. (*Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 467.)

As already noted, each request for adjudication relies on the same 79 material facts in the separate statement. Material fact number 28 lacks support. As material fact number 28 is identified as material to each issue to be adjudicated, none of the issues defendants' identified may be adjudicated.

Defendants' motion for summary judgment, or alternatively, adjudication, is denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK **on** 08/19/26
(Judge's initials) (Date)